

Amendment No. 1 to HB2405

Crawford
Signature of Sponsor

AMEND Senate Bill No. 2181*

House Bill No. 2405

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 8, Chapter 27, Part 2, is amended by adding the following as a new section:

8-27-212.

(a) As used in this section:

(1) "Catastrophic injury" means a permanent impairment or disability:

(A) From one (1) or more of the following:

(i) Paraplegia or permanent paralysis of both legs and the lower part of the body resulting from traumatic injury or disease to the spinal cord or brain;

(ii) Legal blindness;

(iii) Loss or loss of use of two (2) or more limbs from any service-connected cause;

(iv) An acquired injury to the brain or spinal cord, or both, caused by an external physical force;

(v) Second- or third-degree burns; or

(vi) Injuries to the skin that involve the likelihood of permanent or protracted disfigurement; or

(B) That is of a nature and severity that would qualify an employee to receive social security disability insurance (SSDI) benefits or supplemental security income (SSI);

(2) "Eligible injured officer" means a person:

(A) Who is a former state law enforcement officer;

(B) Who, on or after January 1, 2024, suffered a catastrophic injury in the line of duty while employed as a state law enforcement officer; and

(C) Whose coverage in a health insurance plan under this chapter was discontinued due to separation of service as a state law enforcement officer; and

(3) "State law enforcement officer" means a full-time, salaried employee of this state who is a commissioned member of the department of safety, an agent of the Tennessee bureau of investigation, a commissioned employee of the wildlife resources agency engaged in law enforcement activities on a day-to-day basis, a commissioned member of the alcoholic beverage commission who is engaged in law enforcement activities on a day-to-day basis, or a correctional officer vested with the powers of a law enforcement officer by the commissioner of correction.

(b) The state insurance committee may, in approving a health insurance plan that covers state law enforcement officers, offer or continue to provide health insurance benefits to an eligible injured officer and the spouse and eligible dependent children, including an unborn child, of the eligible injured officer for a period not to exceed two (2) years after the date of the officer's separation of service, and the employing entity shall pay the employer portion of the premium.

(c) The criteria for determination of eligibility of dependent children is the same as the criteria established by the state insurance committee for state employees and their families.

(d) If the spouse is or becomes eligible for insurance coverage through a subsequent marriage, then the extension of coverage authorized in this section must be

terminated on the first day of the following month. The state insurance committee may establish specific conditions for extensions in instances where preexisting conditions may apply during the transfer of coverage.

(e) If insurance coverage under the state plan is terminated for the spouse pursuant to subsection (d), but the spouse is unable to secure through the new coverage insurance coverage for the eligible dependent children, then the eligible dependent children may continue coverage under this section; provided, that the eligible dependent children continue to meet all dependent eligibility requirements.

SECTION 2. Tennessee Code Annotated, Title 8, Chapter 27, Part 4, is amended by adding the following as a new section:

8-27-405.

(a) As used in this section:

(1) "Catastrophic injury" has the same meaning as defined in § 8-27-212;

(2) "Eligible injured officer" means a person:

(A) Who is a former local law enforcement officer;

(B) Who, on or after January 1, 2024, suffered a catastrophic injury in the line of duty while employed as a local law enforcement officer; and

(C) Whose coverage in a health insurance plan was discontinued due to separation of service as a local law enforcement officer; and

(3) "Local law enforcement officer" means a full-time, salaried employee of a political subdivision who is a sheriff, sheriff's deputy, police officer, chief of police, or other law enforcement officer whose primary responsibility is the prevention and detection of crime and apprehension of offenders, or who is a correctional officer with the political subdivision.

(b) If a political subdivision offers health insurance benefits to local law enforcement officers, then the political subdivision may offer or continue to provide

health insurance benefits to an eligible injured officer and the spouse and eligible dependent children, including an unborn child, of the eligible injured officer for a period not to exceed two (2) years after the date of the officer's separation of service, and the political subdivision shall pay the employer portion of the premium.

(c) A political subdivision that offers or provides health insurance benefits in accordance with subsection (b) shall notify the commissioner of finance and administration.

(d) This state shall reimburse a political subdivision that provides health insurance benefits in accordance with this section in an amount equal to that portion of health insurance premiums or expenses for COBRA coverage for benefits for which the political subdivision is responsible.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.